

Amendment No. 1 to HB1255

Farmer
Signature of Sponsor

AMEND Senate Bill No. 943*

House Bill No. 1255

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 36-6-106(a), is amended by adding the following after the first sentence:

As required by § 36-6-404(b), only if the limitations of § 36-6-406(a)–(d) are not dispositive of the child's residential schedule, then the court shall consider all relative factors, including the factors found in subdivisions (a)(1)–(17), and in a child custody order, the court shall include written findings of fact as to whether the limitations in § 36-6-406(a)–(d) apply.

SECTION 2. Tennessee Code Annotated, Section 36-6-106, is amended by deleting subdivisions (a)(15) and (a)(16) and substituting:

(15) Whether a parent has had custody or parenting time reduced or restricted in the past and if so, the reasons custody or parenting time was relinquished;

(16) Whether a parent has failed to pay court-ordered child support; and

(17) Any other factors deemed relevant by the court.

SECTION 3. Tennessee Code Annotated, Section 36-6-106, is amended by deleting subsection (g).

SECTION 4. Tennessee Code Annotated, Section 36-6-703, is amended by adding the following as a new subsection:

(d) In a proceeding in which the court has made a finding against a parent under § 36-6-406(a)–(d), the court shall include in the custody order written findings of fact that are the basis of its conclusions in regard to decision-making pursuant to § 36-6-407.

SECTION 5. Tennessee Code Annotated, Section 37-1-130, is amended by adding the following as a new subsection:

(f) When the court orders supervised visitation due to a finding against a parent under § 36-6-406(a)–(d) or § 37-1-129, there is a rebuttable presumption that the parent whose parenting time is restricted and supervised must be solely responsible for all fees and costs incurred as a result of the supervised visitation arrangement, and that the non-offending parent must not bear any fee or cost associated with the supervised visitation. The court may order the offending parent to make payment directly to the relevant supervising party or agency as required. The court may review and modify the offending parent's financial responsibility for supervised visitation fees based on changes in circumstances or upon motion by either party, taking into consideration the offending parent's ability to pay.

SECTION 6. Tennessee Code Annotated, Section 36-6-406, is amended by adding the following as a new subsection:

(h) When the court orders supervised visitation due to a finding against a parent under subdivisions (a)–(d), there is a rebuttable presumption that the parent whose parenting time is restricted and supervised must be solely responsible for all fees and costs incurred as a result of the supervised visitation arrangement, and that the non-offending parent must not bear any fee or cost associated with the supervised visitation. The court may order the offending parent to make payment directly to the relevant supervising party or agency as required. The court may review and modify the offending parent's financial responsibility for supervised visitation fees based on changes in circumstances or upon motion by either party, taking into consideration the offending parent's ability to pay.

SECTION 7. Tennessee Code Annotated, Section 36-3-601(1), is amended by designating the current language as subdivision (1)(A) and adding the following as a new subdivision (1)(B):

(B) "Abuse" includes acts inflicted directly by the offending party or indirectly through a third party, including, but not limited to, a family member, friend, significant other, or coworker, on behalf of the offending party;

SECTION 8. This act takes effect July 1, 2025, the public welfare requiring it, and applies to actions filed on or after that date.